

MANAGED IT SERVICES AGREEMENT

NexaTech Solutions — Enterprise Managed Services Contract

CONTRACT SUMMARY

Field	Details
Vendor Name	NexaTech Solutions Ltd
Client Name	Acme Corporation Ltd
Contract Reference	NXT-2024-MSP-00621
Contract Type	Managed IT Services & Infrastructure Support
Start Date	1 September 2024
End Date	31 August 2027
Renewal Date	1 June 2027
Notice Period	90 days prior to renewal date
Contract Value	£120,000 per annum (£360,000 total)
Payment Terms	Monthly in advance, due within 14 days of invoice
Auto-Renewal	Yes — unless notice given 90 days before renewal date
Currency	GBP (£)

1. PARTIES

This Managed IT Services Agreement (the "**Agreement**") is entered into as of 1 September 2024 between:

Vendor: NexaTech Solutions Ltd, registered in England and Wales (Company No. 09183746), 45 Gresham Street, London, EC2V 7BX ("**Vendor**").

Client: Acme Corporation Ltd, registered in England and Wales (Company No. 04821933), 200 Aldersgate Street, London, EC1A 4HD ("**Client**").

2. SCOPE OF SERVICES

The Vendor shall provide the following managed IT services to the Client throughout the Term:

Service	Description	Coverage
Network Management	Monitoring, maintenance and optimisation of all network infrastructure	24/7
Cybersecurity	Firewall management, threat detection, incident response, malware reporting	24/7
Cloud Infrastructure	AWS/Azure management, cost optimisation, backup and DR	Business hours + on-call
Helpdesk Support	Tier 1-3 support for up to 200 users	Mon-Fri 08:00-20:00
Hardware Procurement	Device procurement, asset management, lifecycle planning	Business hours
Compliance & Audit	ISO 27001, Cyber Essentials, quarterly audit reports	Quarterly

3. PRICING AND PAYMENT

Service Module	Monthly Fee	Annual Fee (ex. VAT)
Network Management & Monitoring	£2,500	£30,000
Cybersecurity Suite	£3,000	£36,000
Cloud Infrastructure Management	£2,000	£24,000
Helpdesk Support (200 users)	£1,500	£18,000
Hardware Procurement Management	£500	£6,000
Compliance & Audit Services	£500	£6,000
TOTAL	£10,000/month	£120,000 per annum

Invoices are issued monthly in advance on the first business day of each month. Payment is due within 14 days. Late payment interest accrues at 8% above the Bank of England base rate per the Late Payment of Commercial Debts Act 1998.

3.1 Price Review

Fees are fixed for the first 12 months. Thereafter the Vendor may review pricing annually, with any increase capped at the lower of 5% or CPI, with 90 days written notice to the Client.

4. TERM AND RENEWAL

Initial Term: This Agreement commences on 1 September 2024 and expires on 31 August 2027 (3 years).

Auto-Renewal: Unless either party provides written notice of non-renewal at least 90 days before expiry, this Agreement automatically renews for successive 12-month periods.

Renewal Date: Written notice of non-renewal for the Initial Term must be received no later than **1 June 2027**.

5. EARLY TERMINATION AND EXIT CLAUSE

5.1 Termination for Convenience: The Client may terminate this Agreement at any time before the end of the Initial Term or any Renewal Term by providing 90 days written notice to the Vendor. Early termination is subject to the Exit Fee schedule in Clause 5.4.

5.2 Termination for Cause by Client: The Client may terminate immediately without penalty if the Vendor: (a) fails to meet the SLA thresholds in Clause 6 for three consecutive months; (b) commits a material breach unremedied within 30 days of written notice; (c) experiences a data breach affecting Client data due to Vendor negligence; or (d) becomes insolvent or enters administration.

5.3 Termination for Cause by Vendor: The Vendor may terminate on 30 days written notice if the Client fails to pay undisputed invoices within 60 days of the due date, or commits a material breach unremedied within 30 days of notice.

5.4 Early Exit Fee Schedule:

Termination During	Exit Fee Payable
Months 1-6 (Sep 2024 - Feb 2025)	100% of remaining contract value for full term
Months 7-12 (Mar 2025 - Aug 2025)	75% of remaining contract value

Year 2 (Sep 2025 - Aug 2026)	50% of remaining annual contract value
Year 3 (Sep 2026 - Aug 2027)	25% of remaining annual contract value
Any Renewal Term	3 months fees in lieu of notice
Termination for Cause (Clause 5.2)	No exit fee payable

5.5 Transition Assistance: Upon termination for any reason, the Vendor shall provide up to 60 days of transition assistance at no additional cost, including knowledge transfer, documentation handover, and cooperation with any incoming IT provider. All Client data must be returned in a portable format within 14 days of termination.

6. SERVICE LEVEL AGREEMENT

Metric	Target	Measurement	Remedy for Breach
Network Uptime	99.95% monthly	Continuous monitoring	5% monthly credit per 0.1% below target
Critical Incident Response	15 minutes	Ticket timestamp	Service credit £500 per breach
High Priority Response	2 hours	Ticket timestamp	Service credit £250 per breach
Standard Response	8 business hours	Ticket timestamp	No credit
Cybersecurity Incident Response	30 minutes	Alert timestamp	Full incident review + credit
Monthly Reporting	By 5th of month	Report delivery date	£100 credit per late report

Total service credits in any month shall not exceed 20% of the monthly fee. Credits are applied to the following month's invoice.

7. CYBERSECURITY AND DATA PROTECTION

The Vendor maintains ISO 27001 certification and shall comply with UK GDPR and the Data Protection Act 2018. The Vendor acts as Data Processor; the Client acts as Data Controller. The Vendor shall notify the Client of any data breach within 4 hours of discovery. A Data Processing Agreement is incorporated by reference.

8. INTELLECTUAL PROPERTY

All Client data, systems, and configurations remain the exclusive property of the Client at all times. Any custom scripts, automations, or configurations developed specifically for the Client under this Agreement become the property of the Client upon termination.

9. LIMITATION OF LIABILITY

The Vendor's total aggregate liability shall not exceed 12 months of fees paid under this Agreement. Neither party shall be liable for indirect, consequential, or special losses. This limitation does not apply to death or personal injury, fraud, or data breach caused by Vendor negligence.

10. GOVERNING LAW

This Agreement is governed by the laws of England and Wales. Both parties submit to the exclusive jurisdiction of the English courts.

SIGNATURES

FOR AND ON BEHALF OF VENDOR

NexaTech Solutions Ltd

Signature: _____

Name: _____

Title: _____

Date: _____

FOR AND ON BEHALF OF CLIENT

Acme Corporation Ltd

Signature: _____

Name: _____

Title: _____

Date: _____